government and the government in turn interprets the will of the state through law.

❖ **Law in relation to justice**

- the aim is to attain justice in society.
- Justice? It is an abstract idea of right and wrong, fairness and equality.
- therefore, the doing of what is right or just in a particular of circumstances.

Views On Law

- ❖ "Law is the command of the sovereign" according to ***John Austin***
- ❖ "Law is the collection of rules which the state recognizes and applies in the administration of Justice" said ***Salmond***

What are the purposes of Law?

- ❖ Protect basic human rights
- ❖ Promote fairness
- ❖ Help resolve conflicts
- ❖ Promote justice
- ❖ Promote order and stability
- ❖ Promote desirable social and economic behaviour
- ❖ Represent the will of the majority (on some issues)
- ❖ Protecting the rights of minorities

4.1.3 Classification of Laws.

i. Private laws

The relationship of citizens and the regulation of relations among one another are determined by private laws.

Quotable Quote

In private laws the parties concerned are private individuals above and between whom stands the state as an impartial arbiter. ***- Holland***

ii. Public laws

The laws that determine the relation of citizens to the state are public laws. Public law perceives state as an arbiter as well as one of the parties interested in it.

iii. Constitutional laws

Constitutional laws are the basic laws according to which the government in a state conducts itself. The laws that define interpret and regulate the functions of the government are known as constitutional laws. For example, the election of President, the powers and functions of the Supreme court and method of the appointment of the governor are constitutional affairs.

iv. Statute Laws

Statute laws are the laws which are framed by the Legislative Assembly or by the Parliament. Democratic Government being popular in most of the countries, the laws of those government are framed mostly by the Parliaments in those countries.

v. Ordinances

Ordinances are generally issued by the executive branch of the government as per the law of the state. Ordinances are temporary by nature and are issued by the President in the absence of parliament, especially to face the emergency.

vi. Common Laws

Common laws are those laws which rest on customs but are enforced by the courts like statute law. Common laws are popular in England.

vii. Administrative Laws

The office and responsibilities of government servants are interpreted and governed by Administrative law. It is the

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